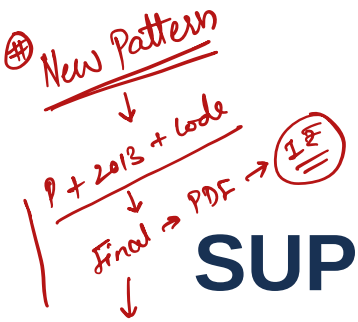
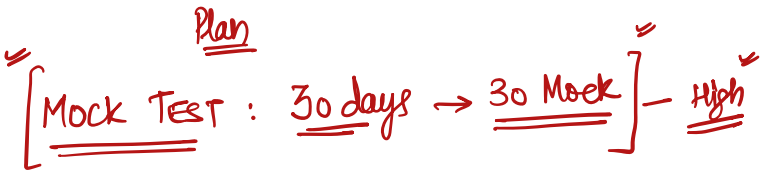
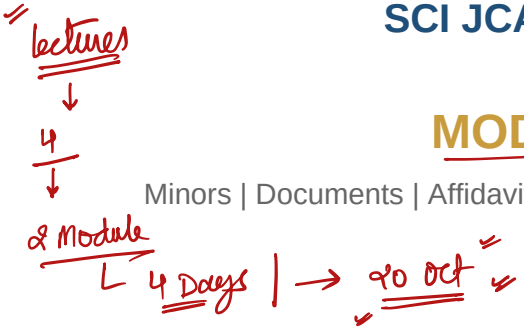




SUPREME COURT RULES, 2013

SCI JCA 2026 - Exam-Oriented Class Book



MODULE 2: ORDERS VII TO XV

Minors | Documents | Affidavits | Inspection | Notices | Judgments | Copies | Court Funds | Petitions

Easy English | Rule-wise Notes | JCA Fact Alerts | Exam Traps | Revision Tables | Practice MCQs

Prepared from the SCI Rules, including the relevant 2014 Circular and 2019 Amendment contained in the official compilation.

How to Use Module 2

Module 2 contains some of the most practical Registry-oriented provisions in the SCI Rules. A JCA candidate should focus on who performs an action, the exact time limit, the authority before whom an application lies, the difference between similar procedures, and the exceptions to a general rule.

Layer	How to Study
1. Rule Number	Attach every fact to its Order and Rule.
2. Simple Meaning	Understand the procedure without legal jargon.
3. JCA Fact Alert	Memorise exact days, amounts, authorities and exceptions.
4. Exam Trap	Compare facts that look similar but lead to different authorities.
5. 30-Second Revision	Revise the Order immediately after finishing it.
6. MCQs	Test recall without looking at the notes.

SOURCE DISCIPLINE: The legal propositions, time limits, fees and authorities in this module are taken from the SCI Rules. Where the 2014 Circular or 2019 Amendment affects an Order, it is shown separately.

Important: The SCI Rules compilation uses references such as CPC, 1908 and CrPC, 1973. This module preserves the terminology used in the SCI Rules and does not silently replace it with later legislation.

Contents

- Order VII - Proceedings by or Against Minors or Persons of Unsound Mind
- Order VIII - Documents
- Order IX - Affidavits
- Order X - Inspection, Search, etc.
- Order XI - Notices of Motion
- Order XII - Judgments, Decrees and Orders
- Order XIII - Copying
- Order XIV - Payment Into and Out of Court of Suitors' Funds
- Order XV - Petitions Generally
- Master Comparison Tables
- Master Number Map
- Practice MCQs with Answer Key

Basic Legal Terms for This Module

Term	Easy Meaning
Minor	A person who has not attained majority within the meaning referred to in Order VII.
Next friend	A person through whom a minor institutes or continues a proceeding.
Guardian	Person appointed to protect the interest of a minor respondent in the proceeding.
Guardian ad litem	Guardian appointed for the purpose of the particular case/proceeding.
Affidavit	A written statement of facts sworn or affirmed to be true.
Deponent	Person who makes/swore the affidavit.
Interlineation	Words inserted between existing lines of a document.
Ex parte	An order/hearing made without the other side being heard at that stage.
Motion	Formal request made to the Court for an order.
Caveat	Notice lodged by a person claiming a right to be heard before an expected or lodged petition is dealt with.
Certified copy	Copy officially certified to be a true copy of the original Court record.
Challan	Payment document used for depositing money in accordance with the Rules.
Lodgement schedule	Prescribed schedule presented for issue of a challan when money is to be paid into Court.
Mutatis mutandis	With the necessary changes made to fit the new situation.
Pardahnashin lady	Term used in Order IX for a woman observing seclusion/purdah; the Rule prescribes a special oath/affirmation procedure.
Caveator	Person who lodges a caveat.

EXAM STRATEGY: Do not learn legal terms separately from procedure. Link each term with the Order in which it appears.

Suo Motu : on its own.

Prima Facie : At first sight.

ORDER VII - PROCEEDINGS BY OR AGAINST MINORS OR PERSONS OF UNSOUND MIND

SCI Rules pp. 11-13 | Priority: IMPORTANT

This Order protects persons who may not be able to conduct litigation themselves. It explains the role of a next friend, guardian, replacement procedure, compromise, majority and the application of these protections to persons of unsound mind.

Rule 1 - Proceeding by a Minor

Every appeal, petition or other proceeding by a minor must be instituted or continued in the minor's own name by a next friend.

SIMPLE MEANING: The minor remains the named party, but the proceeding is conducted through a next friend.

EXAM TRAP: A next friend is used for a minor who brings/continues the proceeding. A guardian is dealt with where a minor is a respondent.

Rule 2 - Retirement of Next Friend

- A next friend cannot retire without leave of the Court.
- The Court may require a fit replacement before permitting retirement.
- The Court may also require security for costs already incurred or likely to be incurred.

Rule 3 - Retirement, Removal or Death of Next Friend

- Further proceedings are stayed until a new next friend is appointed.
- If the minor's AOR does not take steps within a reasonable time, a person interested in the minor or the matter may apply to the Court.
- The Court may appoint a person it considers fit as the new next friend.

JCA FACT ALERT: Retirement/removal/death of next friend -> proceedings stay until a new next friend is appointed.

Rule 4 - Application for New Next Friend

The application must be supported by an affidavit showing that the proposed person is fit and proper and has no interest adverse to the minor.

Rule 5 - Minor as Respondent; Appointment of Guardian

If a respondent to an appeal or petition is a minor and is not represented by a guardian, an application for appointment of guardian may be made by the appellant/petitioner or by a person interested in the minor. The application must be supported by an affidavit stating that the proposed guardian has no adverse interest.



JCA FACT ALERT: Where a person other than the father, or where there is no father the mother/other natural guardian, is proposed, notice must be served on the appropriate natural guardian/person with whom the minor resides not less than 14 days before the hearing date.

- If no other fit and willing person is available, the Court may appoint an officer of the Court as guardian.
- The Court may also issue notice to the minor if it thinks fit.

Rule 6 - Retirement or Removal of Guardian

- Guardian cannot retire without leave of Court.
- Court may remove a guardian who fails in duty or where sufficient cause exists.
- If guardian retires, dies or is removed during the proceeding, the Court shall appoint a new guardian.

Rule 7 - Guardian Without Sufficient Funds

If a guardian ad litem of a minor respondent lacks sufficient funds and the defence would be prejudiced, the Court may order the appellant/petitioner to advance such money as the Court fixes. The money forms part of the costs, and the guardian must file an account of the money received.

Rule 8 - Minor Attains Majority

An application to declare a party described as a minor, to be a major and to discharge the next friend/guardian must be supported by an affidavit stating the age and the date on which majority was attained. Notice goes to the next friend/guardian and to the alleged major.

Rules 9 and 10 - Agreement or Compromise on Behalf of Minor

- A next friend or guardian cannot enter into an agreement or compromise on behalf of a minor without leave of the Court expressly recorded in the proceedings.
- An application for leave to compromise/withdraw in pursuance of compromise must be supported by an affidavit from the next friend/guardian stating that the compromise is for the benefit of the minor.
- Where the minor is represented by an advocate, there must also be a certificate or statement at the Bar that the compromise is, in the advocate's opinion, for the benefit of the minor.
- The decree/order based on compromise must recite the Court's sanction and set out the terms of compromise.

EXAM TRAP: Consent of the next friend or guardian alone is not enough. Leave of the Court must be expressly recorded.

Rule 11 - Adverse Interest of Next Friend/Guardian

A decree against a minor is not set aside merely because the next friend or guardian had an adverse interest. It becomes a ground for setting aside when the adverse interest caused prejudice to the minor. The minor is also not prevented from seeking relief available under law where misconduct or gross negligence caused prejudice.

Rule 12 - Persons of Unsound Mind

The provisions of Order VII, so far as applicable, also apply to persons adjudged to be of unsound mind and to persons found by the Court on inquiry to be incapable of protecting their interests because of unsoundness of mind or mental infirmity.

Rule 13 - Application of Order XXXII of the Code

Subject to the preceding provisions, Order XXXII of the Code relating to suits applies, so far as applicable, to appeals and other proceedings in the Supreme Court with necessary changes (mutatis mutandis).

Concept	Next Friend	Guardian
Used when	Minor brings/continues proceeding	Minor is respondent and needs representation
Retirement	Requires leave of Court	Requires leave of Court
Replacement	Proceedings stay until new next friend after retirement/removal/death	Court appoints new guardian after retirement/death/removal
Compromise	Court leave expressly recorded	Court leave expressly recorded

30-Second Revision

- Minor proceeding is instituted/continued in minor's name by next friend.
- Next friend cannot retire without Court leave.
- Retirement/removal/death of next friend -> proceedings stay until replacement.
- New next friend application requires affidavit of fitness and no adverse interest.
- Special guardian notice period in Rule 5: not less than 14 days.
- Compromise for minor requires expressly recorded leave of Court.
- Adverse interest alone does not set aside decree; prejudice is required.
- Order extends, so far as applicable, to persons of unsound mind/mental infirmity.

ORDER VIII - DOCUMENTS

SCI Rules pp. 13-14 | Priority: VERY IMPORTANT

Order VIII is one of the most important Registry provisions for SCI JCA. It covers the form of documents, translations, presentation at filing counter, scrutiny of defects, Court fees, deficiency and recovery.

Rule 1 - Form and Legibility of Documents

- Pleading, petition, affidavit or other document is to be fairly and legibly written/type-written/lithographed in double-line spacing on one side of the specified paper, subject to the stated exceptions for original exhibits and certified copies of public documents.
- The Rule mentions standard petition paper, demy-foolscap, 29.7 cm x 21 cm, or paper ordinarily used in High Courts for the purpose.
- Copies for Court use must be neat and legible and certified as true copies by the AOR or party-in-person, as the case may be.

JCA FACT ALERT: One size expressly mentioned in Rule 1: 29.7 cm x 21 cm.

Rules 2 to 4 - Documents in Languages Other Than English

- A non-English document cannot be used unless accompanied by an acceptable English translation as provided in Rule 2.
- Acceptable routes include a translation agreed by both parties, a true translation certified by a Court-appointed translator, or translation by a translator appointed/approved/notified by the Court.
- The rule also applies, so far as possible, where only part of an English document is in another language.
- A translator must make an oath or affirmation before acting that translations will be correct and accurate.

Rule 5 - Who May Present Documents

Plaints, petitions, applications and other documents may be presented by the relevant party in person, duly authorised agent, or duly appointed AOR.

SPECIAL SITUATION: A person adjudged indigent in the courts below may present the document before the judicial authority of the place where the person resides. After attestation and date endorsement, that authority transmits it by registered post acknowledgement due at the party's expense. The presentation date in the Supreme Court is deemed to be the date endorsed by that judicial authority.

Rule 6(1) and (2) - Filing Counter and Initial Scrutiny

- Plaints, petitions, appeals and other documents are presented at the filing counter with required accompanying documents.
- A plaint, petition or appeal not presented at filing counter by the petitioner or duly authorised AOR is not ordinarily accepted unless directed by the CJI or a Judge nominated by the CJI for this purpose.
- Officer in charge endorses date of receipt, enters particulars in register of daily filing and sends the document for examination.
- If in order on scrutiny, it is registered and given a serial number.

Rule 6(3) to (5) - Defects and Appeal Against Registrar

- If defective, after notice to the filing party, the document is placed before the Registrar.

- Registrar may decline to receive the document by written order if mandatory requirements are not satisfied.
- A formal defect may be rectified in the Registrar's presence.
- For other defects, the party may be required to obtain a Court order permitting rectification; Registrar may allow necessary time not exceeding 28 days in aggregate.
- If no steps are taken within the time fixed, Registrar may decline registration for reasons recorded in writing.
- A party aggrieved by the Registrar's order under Rule 6 may appeal to Judge in Chambers within 15 days of the order.

JCA FACT ALERT: Order VIII: defect rectification time by Registrar -> maximum 28 days in aggregate. Appeal against Registrar -> 15 days -> Judge in Chambers.

Rule 7 - Return of Original Document

Registrar may, on application by the interested party, order return of a document filed in the proceeding if a certified copy is delivered in the office to substitute the original.



Rule 8 - Court Fees

- Court fees in the Third Schedule are payable on documents mentioned there, unless otherwise provided by the Rules or law.
- A chargeable document is not received/filed unless prescribed fee is paid; a copy is not furnished until prescribed fee is paid.
- No Court fee, process fee or copying fee is chargeable in matters filed through the Supreme Court Legal Services Committee.
- Fees are collected in Court-fee stamp sold in Delhi in accordance with the Court-Fees Act as in force in the Union Territory of Delhi.
- A Court-fee stamp must be cancelled before the chargeable document is acted upon; the officer cancels it by punching out the figure head while leaving the amount designation untouched, and the punched part is burnt or otherwise destroyed.

JCA FACT ALERT: If Court-fee is insufficient due to bona fide mistake, Registrar may require deficiency to be made good within a reasonable time not exceeding 3 months.

If the deficiency is made good within the allowed time, the proceeding is deemed instituted on the original institution date. Registrar may also issue a certificate regarding excess Court fee paid by mistake.

Rule 9 - Superintendence and Recovery of Court-Fee Deficiency

- Levy and collection of Court fees are under the general superintendence of the Registrar, who may be assisted by Assistant Registrars.
- Registrar or Taxing Officer may determine deficiency even during pendency or after conclusion, but the person liable must first be given an opportunity of being heard.
- If a disposed matter has a declared deficiency and it is not made good within 3 months of the declaration, Registrar forwards a requisition to the Central Government for recovery as if it were an arrear of land revenue.

Number	What It Means in Order VIII
28 days	Maximum aggregate time Registrar may allow for the non-formal defect procedure in Rule 6(3).

Number	What It Means in Order VIII
15 days	Appeal from Registrar order under Rule 6 -> Judge in Chambers.
3 months	Maximum time to make good bona fide Court-fee deficiency under Rule 8(4); also recovery trigger in disposed matter under Rule 9(3).
29.7 cm x 21 cm	One paper size expressly stated in Rule 1.

EXAM TRAP: Do not confuse Order VIII Rule 6 with Order XV Rule 5. Both use 15 days, but Order VIII appeal goes to Judge in Chambers; Order XV refusal appeal goes to the Court by motion.

30-Second Revision

- Documents must satisfy form/legibility requirements; Court-use copies are certified by AOR or party-in-person.
- Non-English document requires an acceptable translation under Rules 2-3.
- Filing counter officer endorses date and enters daily filing register.
- Formal defect may be corrected before Registrar; other defect route may require Court permission.
- 28 days aggregate is the Rule 6 defect time ceiling.
- Registrar order under Rule 6 -> appeal within 15 days to Judge in Chambers.
- SCLSC matters: no Court fee/process fee/copying fee under Rule 8 proviso.
- Bona fide Court-fee deficiency: time not exceeding 3 months.
- Disposed matter deficiency unpaid for 3 months after declaration -> recovery via Central Government as arrear of land revenue.

ORDER IX - AFFIDAVITS

SCI Rules p. 15 | Priority: VERY IMPORTANT

Order IX tells us how affidavits are used, what they must contain, who may administer the oath/affirmation, how alterations are treated and what happens when an affidavit is late or defective.

Rules 1 and 2 - Proof by Affidavit and Cross-Examination

- Court may, for sufficient reason, order that a fact be proved by affidavit or a witness affidavit be read at hearing on reasonable conditions.
- If a party bona fide wants the witness produced for cross-examination and the witness can be produced, the Court shall not authorise that witness's evidence to be given by affidavit.
- On an application, evidence may be given by affidavit; Court may order the deponent to attend for cross-examination.
- Attendance is in Court unless the deponent is exempted from personal appearance or Court otherwise directs.

Rules 3 to 5 - Form and Contents

- Every affidavit is filed in the cause, appeal or matter for which it is sworn.
- Affidavit is drawn in the first person and divided into consecutively numbered paragraphs.
- It states description, occupation (if any) and true place of abode of the deponent.
- Affidavit is generally confined to facts the deponent can prove from own knowledge.
- On interlocutory applications, statements of belief may be admitted if the grounds are stated.

EXAM TRAP: Statements of belief are not freely allowed in every affidavit. Rule 5 specifically permits them on interlocutory applications, provided grounds are stated.

Rule 6 - Interpretation of Affidavit

Place	Who Interprets
Within State of Delhi	Interpreter nominated or approved by the Court.
Elsewhere	Competent person who certifies that the affidavit was correctly interpreted to the deponent.

Rule 7 - Before Whom Affidavit May Be Sworn

- Notary.
- Any authority mentioned in section 139 of the Code.
- Registrar of the Supreme Court duly authorised by the Chief Justice.
- Oath Commissioner generally or specially authorised by the Chief Justice.

Rule 8 - Pardahnashin Lady

A pardahnashin lady shall affirm or take oath before a lady Registrar of the Supreme Court (including Additional Registrar) duly authorised by the CJI, or before a lady Oath Commissioner. She must also be identified by a person known to her, and that person proves the identification by a separate affidavit.

JCA FACT ALERT: Rule 8 requires both the specified female oath authority and separate identification by a person known to the deponent.

Rules 9 to 11 - Exhibits, Alterations and Erasures

- Every exhibit annexed to an affidavit is marked with title and number of the cause/appeal/matter and initialled and dated by the authority before whom affidavit is sworn.
- An affidavit with interlineation, alteration or erasure is not filed unless corrections satisfy the Rule: alteration/interlineation initialled; erased words/figures rewritten in margin and initialled.
- Registrar may refuse an affidavit if alterations/interlineations/erasures are so numerous that rewriting is expedient.

Rule 12 - Affidavit Filed After Limited Time

Where a special time has been fixed for filing affidavits, an affidavit filed after that time cannot be used except by leave of the Court.

Rule 13 - Meaning of Affidavit and Verification

- For this Order, affidavit includes a petition or other document required to be sworn or verified.
- "Sworn" includes "affirmed".
- Verification must distinguish statements based on personal knowledge from those based on information and belief.
- For information-based statements, the source of information must be disclosed, including official records.

30-Second Revision

- Court may permit proof by affidavit, but bona fide cross-examination protection applies.
- Affidavit: first person + consecutively numbered paragraphs.
- Normally facts from own knowledge; belief statements allowed on interlocutory applications with grounds.
- Within Delhi: interpreter nominated/approved by Court; elsewhere: competent certifying person.
- Affidavit may be sworn before Notary, specified authority, authorised Registrar, or authorised Oath Commissioner.
- Pardahnashin lady: lady Registrar/Additional Registrar authorised by CJI or lady Oath Commissioner + separate identification affidavit.
- Late affidavit after special time -> only with leave of Court.
- Verification must separate personal knowledge from information/belief and disclose source.

ORDER X - INSPECTION, SEARCH, ETC.

SCI Rules pp. 15-16 | Priority: VERY IMPORTANT

This short Order is highly exam-friendly. It deals with who can inspect records, notice required during pendency, custody of records and requisition by other authorities.

Rule 1 - Party's Right to Search or Inspect

A party to a cause, appeal or matter may apply to the concerned Registrar and, subject to the Rules, is allowed to search or inspect pleadings and other documents/records on payment of prescribed fees and charges.

Rule 2 - Inspection During Pendency

- Inspection/search during pendency is allowed only in presence of an officer of the Court.
- Written notice of 24 hours must be given to parties who have appeared.
- Copies of documents are not allowed to be taken during the inspection, but notes may be made.

JCA FACT ALERT: Inspection during pendency -> officer present + 24 hours written notice + notes allowed, copies not allowed.

Rule 3 - Removing Record from Court Custody

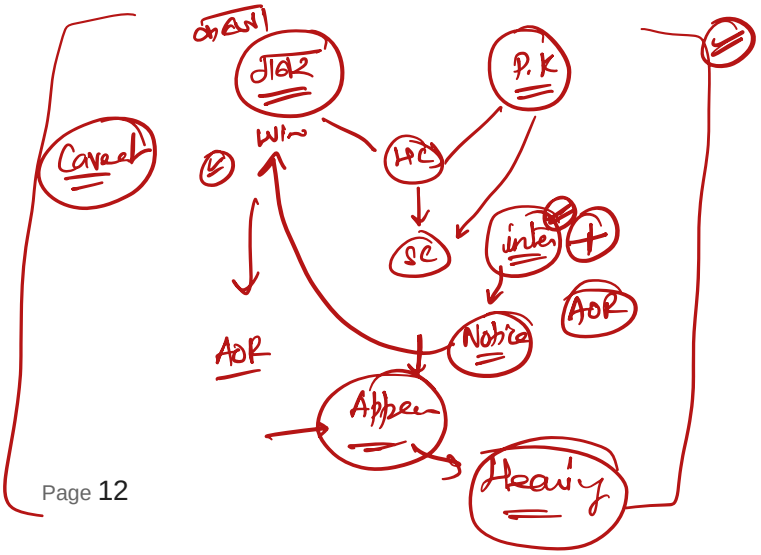
No record or document filed in a proceeding may be taken out of Court custody without leave of the Court.

Rule 4 - Requisition by Court/Tribunal/Public Authority

Registrar may, in discretion, permit a record to be sent to a Court, Tribunal or other public authority on a requisition received from that authority.

30-Second Revision

- Party applies to concerned Registrar for search/inspection and pays prescribed fees/charges.
- During pendency: inspection only in presence of Court officer.
- Notice to appeared parties: 24 hours in writing.
- Notes may be made; copies may not be taken during inspection.
- Record cannot leave Court custody without leave of Court.
- Registrar may permit transmission on requisition from Court/Tribunal/public authority.



ORDER XI - NOTICES OF MOTION

SCI Rules p. 16 | Priority: IMPORTANT

Order XI explains how applications that cannot be made in Chambers are moved, when ex parte interim relief may be sought, and the exact notice/affidavit timelines.

Rule 1 - Motion After Notice

Unless a statute or the SCI Rules provide otherwise, applications that cannot be made in Chambers are made on motion after notice to the parties affected.

Rule 2 - Ad-interim Ex Parte Order

Where delay caused by notice would or might cause serious hardship, the applicant may pray for an ad-interim ex parte order in the notice of motion. If satisfied on affidavit or otherwise, the Court may make an ex parte order on terms as to costs/undertaking as it thinks just, pending the motion after notice.

Rule 3 - Returnable Date After Ex Parte Order

If the Court has not fixed a return date and has not otherwise directed, the Registrar fixes the return date, and the application is posted before the Court for final orders on that date.

Rule 4 - Contents and Addressing of Notice of Motion

- Instituted in the suit or matter in which application is intended.
- States time and place of application and nature of order asked for.
- Addressed to affected party/parties, or to their AOR if they have one.
- Signed by moving party's AOR, or by party personally if acting in person.

Rule 5 - The 7-14-5-2 Timeline

Step	Exact Time
Notice when opposite party has entered appearance	Not less than 7 days before the motion.
Notice when opposite party has NOT entered appearance	Not less than 14 days before the motion.
Affidavit in opposition	Not later than 5 days before hearing.
Affidavit in reply	Not later than 2 days before hearing.

MEMORY AID: Notice of Motion number chain: 7 - 14 - 5 - 2.

Affidavits in opposition/reply must be served on the opposite party and are not accepted in Registry unless they contain an endorsement of service signed by such party/parties.

JCA FACT ALERT: Leave to serve short notice of motion may be obtained ex parte from the Registrar upon affidavit.

Rule 6 - Grounds to Be Notified

Notice must be given to the other party/parties of all grounds intended to be urged in support of or opposition to the motion.

Rule 7 - Interlocutory/Miscellaneous Application in Constitutional Matter

An interlocutory or miscellaneous application, even when made in an appeal or proceeding raising a substantial question of law as to interpretation of the Constitution, may be heard and decided by a Bench of not less than five Judges.

JCA FACT ALERT: Order XI Rule 7 expressly states: Bench of not less than 5 Judges.

30-Second Revision

- Applications not made in Chambers -> motion after notice, unless otherwise provided.
- Serious hardship from delay may justify ad-interim ex parte order.
- Registrar fixes return date if Court has not fixed one and does not direct otherwise.
- Notice timeline: 7 days if appearance entered; 14 days if not.
- Opposition affidavit: 5 days before hearing.
- Reply affidavit: 2 days before hearing.
- Short notice leave may be obtained ex parte from Registrar upon affidavit.
- Rule 7: not less than 5 Judges.

ORDER XII - JUDGMENTS, DECREES AND ORDERS

SCI Rules pp. 16-17 | Priority: VERY IMPORTANT

This Order tells us how judgment is pronounced, how decrees/orders are drawn, signed, sealed, transmitted and settled, and the time available to challenge the Registrar's settlement of a decree/order.

Rule 1 - Pronouncement of Judgment

After the case is heard, the Court pronounces judgment in open Court either immediately or on a future day of which due notice is given to parties or their AORs. The decree/order is drawn up accordingly.

Rule 2 - Reading Judgment of Another Judge

A member of the Court may read a judgment prepared by another member of the Court.

Rule 3 - Alteration After Pronouncement

Subject to Order XLVII (Review), a judgment pronounced in open Court by the Court, majority or dissenting Judge cannot later be altered or added to except to correct a clerical or arithmetical mistake or an error arising from accidental slip or omission.

EXAM TRAP: Correction of clerical/arithmetical/accidental slip is different from a review petition. Rule 3 itself is subject to Order XLVII.

Rule 4 - Certified Copies

Certified copies of judgment, decree or order are furnished to parties on requisition and at their expense.

Rule 5 - Drawing, Signature, Seal and Date

- Every decree/order is drawn up in the Registry.
- It is signed by Registrar, Additional Registrar or Deputy Registrar.
- It is sealed with the Court seal.
- It bears the same date as the judgment in the suit or appeal.

JCA FACT ALERT: Rule 5 signatories listed: Registrar + Additional Registrar + Deputy Registrar. Assistant Registrar is not listed in this Rule.

Rule 6 - Transmission in Appeals

Decree/order in every appeal, and any order for costs connected with it, is transmitted by the Registrar to the Court/Tribunal from which the appeal came. Enforcement steps are then taken in that Court/Tribunal as prescribed by law.

Rule 7 - Orders in Other Proceedings

Orders in other proceedings are transmitted by Registrar to the judicial/other authority concerned. A party may apply to Judge in Chambers for transmission of such order, including costs order, to another appropriate Court/authority for enforcement.

Rules 8 and 9 - Doubt/Difficulty and Settlement in Presence of Parties

- If there is doubt/difficulty about a decree/order, Registrar/Additional Registrar/Deputy Registrar submits the draft to the Court before issue.
- If the officer considers settlement in presence of parties necessary, or parties require it, written notice appoints a time for settlement.
- Parties attend and produce briefs/documents needed to settle the draft.

Rule 10 - Dissatisfied With Decree/Order as Settled

Where a party is dissatisfied with the decree/order as settled by the Registrar, the Registrar does not complete it without allowing sufficient time to apply by motion to the Court. That time shall not exceed 90 days from the date of the Registrar's order; failing such application, the Registrar proceeds to settle the decree.

JCA FACT ALERT: Order XII Rule 10 -> maximum 90 days from Registrar's order to move the Court.

30-Second Revision

- Judgment pronounced in open Court immediately or on notified future day.
- A Judge may read judgment prepared by another member.
- After pronouncement, only specified clerical/arithmetical/accidental corrections, subject to review provisions.
- Certified copies to parties on requisition at their expense.
- Decree/order drawn in Registry and signed by Registrar/Additional Registrar/Deputy Registrar.
- Decree/order bears same date as judgment.
- Appeal decree/order transmitted to Court/Tribunal appealed from.
- Dissatisfied with Registrar settlement -> motion to Court within allowed period, maximum 90 days.

ORDER XIII - COPYING

SCI Rules pp. 17-18 + 2019 Amendment at p. 108 | Priority: VERY IMPORTANT

Order XIII distinguishes the right of parties and non-parties to obtain copies, explains the application process and certification, and protects confidential/sealed material.

Rule 1 - Party's Right to Certified Copies

A party to a Supreme Court proceeding is entitled to apply for and receive certified copies of pleadings, judgments, decrees/orders, documents and depositions of witnesses made or exhibited in the proceeding.

Rule 2 - Copy to a Non-Party

A person who is not a party may receive such copies only if the Court allows the application on good cause shown, whether the matter is pending or disposed of.

EXAM TRAP: Party -> entitlement under Rule 1. Non-party -> Court permission + good cause under Rule 2.

Rule 3 - Application for Certified/Unauthenticated Copy

Application is in prescribed Form No. 29. Under the SCI Rules as amended in 2019, the presentation route includes an AOR, an advocate who argued the matter, an advocate authorised by the AOR in the case, or a party-in-person. The application may also be sent by post to the Registrar, Copying Section, Supreme Court of India, New Delhi, with requisite copying fee for urgent/ordinary delivery.

2019 AMENDMENT: Order XIII Rule 3 was amended to add an advocate who argued the matter and an advocate authorised by the AOR in the case to the permitted presentation route.

Rule 4 - Entries on Every Prepared Copy

- Date application was filed.
- Date given to receive copy.
- Date copy was made ready.
- Date copy was received by applicant or sent to applicant.

Rule 5 - Certification of Certified Copy

Every certified copy is certified as a true copy of the original by the Assistant Registrar/Branch Officer or other officer authorised by the Registrar, and is sealed with the seal of the Supreme Court in accordance with Order III Rule 6.

Rule 6 - When Certified Copy Is Not Given

- No certified copy is given of a registered document or of a document which is itself a copy of the original.
- However, if such a document is a copy annexed with a petition/appeal/application/reply or other pleading presented in Supreme Court, a "copy" may be issued.
- A copy other than a certified copy must bear an endorsement that "it is not a certified copy".

Rule 7 - Confidential / Sealed Material

No party or person has a right to receive copies/extracts of confidential minutes, letters/documents, sealed-cover material or material which the CJI/Court considers confidential or whose publication is not in public interest, except under a special order of the CJI or Court.

Rule 8 - Copying Branch

Functioning of the Copying Branch is regulated by guidelines/directions issued by the Chief Justice from time to time.

Point	Certified Copy	Other Copy
Status	Officially certified true copy	Not certified as true copy
Certification	By specified authorised officer	Must carry endorsement that it is not a certified copy
Seal	Supreme Court seal under Rule 5	Not treated as certified copy
Registered document / document itself a copy	No certified copy under Rule 6(1)	A copy may be issued in the annexed-document situation stated in Rule 6

30-Second Revision

- Party can apply for certified copies under Rule 1.
- Non-party needs Court permission and good cause.
- Form No. 29 is prescribed for copy application.
- 2019 amendment expands permitted presenter to advocate who argued / advocate authorised by AOR.
- Every prepared copy records four dates under Rule 4.
- Certified copy is certified by Assistant Registrar/Branch Officer/other officer authorised by Registrar and sealed.
- Non-certified copy must state that it is not a certified copy.
- Confidential/sealed/public-interest material requires special CJI/Court order.

ORDER XIV - PAYMENT INTO AND OUT OF COURT OF SUITORS' FUNDS

SCI Rules pp. 18-19 | Priority: IMPORTANT

This Order governs money deposited into Court, the Accounts Branch, challans, payment out, commission, monthly checking and specified fees. It contains several direct numerical facts suitable for MCQs.

Rule 1 - Bank for Court Deposits

Unless otherwise ordered, money directed to be paid into the Court to the credit of a suit, appeal or other proceeding is paid into UCO Bank, Supreme Court Compound, New Delhi, or another Nationalised Bank as directed by the CJI from time to time, into the account described in the Rule.

Rule 2 - Demand Draft / Banker's Cheque / Pay Order

Registrar may in appropriate cases authorise acceptance of demand drafts, banker's cheques or pay orders issued in favour of the Registrar and payable in Delhi/New Delhi by a Nationalised/Scheduled Bank. On encashment, the date of tender is deemed to be the date on which it was presented for encashment, provided the tender is made a day prior to the due date.

JCA FACT ALERT: Rule 2 proviso: tender by DD/banker's cheque/pay order must be made a day prior to the due date.

Rules 3 and 4 - Lodgement Schedule and Challan

- Person ordered to pay money presents prescribed lodgement schedule to Branch Officer, Accounts Branch, for issue of challan.
- Lodgement schedule is accompanied by copy of payment order or bears Registrar certificate of amount/time.
- Challan is issued in duplicate.
- The last date specified in challan cannot exceed 10 days from date of issue.
- Bank retains one copy and returns the other signed and dated to acknowledge receipt.
- Bank does not accept payment after the last date mentioned in the challan.

JCA FACT ALERT: Challan payment period -> in no case exceeding 10 days from date of issue.

Rule 5 - Credit and Receipt

On production of the duly acknowledged challan copy, credit is given in Accounts Branch books and a receipt signed by the Registrar is issued.

Rule 6 - Cause-wise Register and Payment Out

Accounts Branch keeps a cause-wise register of money, effects and securities. No money is paid out of Court funds without an order of the Court.

Rules 7 and 8 - Procedure for Payment Out

- Party seeking payment out applies to the Court for payment order.

- Application is accompanied by Certificate of Funds signed by Registrar, showing amount at credit and claims/attachments.
- After Court order, party applies to Registrar.
- Registrar issues prescribed payment order.
- Payment is obtained from Pay and Accounts Officer, Supreme Court of India, New Delhi, using the endorsed payment documents described in the Rule.

Rule 9 - Commission

Where a party seeks payment of monies or securities paid to/deposited with the Registrar, the Rule provides commission at 1% on the principal amount and 2% on the interest drawn on invested money, with a maximum commission of Rs. 15,000.

JCA FACT ALERT: Commission: 1% on principal + 2% on interest; maximum Rs. 15,000.

Rule 10 - Monthly Check of Accounts

Branch Officer, Accounts Branch, checks and tallies accounts every month with monthly statements from the Pay and Accounts Officer. Registrar certifies every month that accounts have been checked and tallied.

Rules 11 to 14 - Specific Fees and Copies

- AOR registration fees are paid into the Bank to the account titled in Rule 11.
- Fee for registering a clerk of an Advocate or firm of Advocates: Rs. 100.
- Fee for substitute identity card where lost/damaged: Rs. 50.
- Photograph copies or copies of maps: actual charges, to be deposited in cash.

Number/Amount	Order XIV Fact
1 day prior	DD/banker's cheque/pay order tender proviso.
10 days	Maximum payment date period in challan from issue.
1%	Commission on principal amount under Rule 9.
2%	Commission on interest drawn on invested money under Rule 9.
Rs. 15,000	Maximum commission.
Rs. 100	Clerk registration fee.
Rs. 50	Replacement identity card fee.

EXAM TRAP: Rs. 50 is for replacement identity card; Rs. 100 is for registering a clerk. Do not reverse them.

30-Second Revision

- Court deposits ordinarily go to UCO Bank, Supreme Court Compound, or another Nationalised Bank directed by CJI.
- DD/banker's cheque/pay order tender proviso: a day prior to due date.
- Lodgement schedule -> Branch Officer, Accounts Branch -> challan.
- Challan last date cannot exceed 10 days from issue.
- No payment out without Court order.
- Certificate of Funds is signed by Registrar.
- Commission: 1% principal + 2% interest; cap Rs. 15,000.
- Clerk registration fee Rs. 100; replacement ID Rs. 50.
- Accounts are checked/tallied and certified monthly.

ORDER XV - PETITIONS GENERALLY

SCI Rules pp. 19-20 + Circular dated 19 August 2014 at p. 106 | Priority: VERY IMPORTANT

Order XV gives the general procedural rules for petitions: form, caveat, service, affidavit, Registrar refusal, hearing, consent petitions, withdrawal, delay and number of advocates heard.

Rule 1 - Form of Petition

- Paragraphs and pages are numbered consecutively.
- Rule text states petition is fairly/legibly type-written, lithographed or printed on one side of standard A4 size paper with quarter margin.
- It is endorsed with the name of Court appealed from, full title and Supreme Court number of appeal/matter, and name, registered address and e-mail address of petitioner's AOR or petitioner if appearing in person.
- Petitioner files as many copies as required for use of the Court - the Rule does not prescribe one fixed number here.
- If respondent appears and actual address differs from petition address, respondent provides registered address.

2014 CIRCULAR: The Circular dated 19 August 2014 in the SCI Rules compilation states that, as regards the size of paper used for filing a petition under Order XV, the position shall continue to be governed by the Supreme Court Rules, 1966 until further orders. The compilation does not reproduce the exact 1966 paper-size rule in this Circular.

EXAM TRAP: For an MCQ asking the text of Order XV Rule 1, the Rule states standard A4 size. For a question on the 19 August 2014 Circular, remember the separate direction that paper size would continue under the 1966 Rules until further orders.

Rule 2 - Caveat Where Petition Does Not Relate to a Pending Registered Appeal

A person claiming a right to appear at the hearing of an expected or lodged petition may lodge a caveat in the stated situation. The caveator is then entitled to notice from Registrar of lodging of petition (if caveat was earlier) and, after petition is lodged, may require service of the petition and copies of supporting papers at caveator's expense. If petition was already lodged, caveator must forthwith give notice of caveat to petitioner.

JCA FACT ALERT: Order XV Rule 2 does NOT state a numerical validity period for the caveat. Do not import a 90-day period from another law into this Rule.

Rule 3 - Petition in Pending Appeal Whose Record Is Registered

Petitioner serves a copy on any party who has entered appearance in the appeal. That party may require copies of supporting papers at own expense.

Rule 4 - When Petition Needs an Affidavit

A petition other than a memorandum of appeal containing factual allegations that cannot be verified by reference to the Court record must be supported by an affidavit.

Rule 5 - Registrar May Refuse to Receive Petition

- Registrar may refuse if petition discloses no reasonable cause.
- Registrar may refuse if petition is frivolous.
- Registrar may refuse if petition contains scandalous matter.
- Petitioner may appeal by way of motion to the Court within 15 days of the Registrar's order.

JCA FACT ALERT: Order XV Rule 5: 15 days -> appeal by motion -> Court.

Rules 6 and 7 - Setting Down and Notification of Hearing

- As soon as necessary documents are lodged, petition is set down for hearing.
- When Court appoints a hearing day, Registrar notifies the day on notice board/website, subject to Rule 8.

Rule 8 - Consent / Formal and Non-Contentious Petition

If the prayer is consented to in writing by opposite party, or petition is formal and non-contentious, the Court may make an order without requiring attendance. Registrar then promptly notifies parties that order was made and its date/nature.

Rule 9 - Withdrawal of Petition

Petitioner wishing to withdraw gives written notice to Registrar. If opposed, opponent may apply for costs subject to contrary agreement. Unopposed petitions, or opposed petitions where costs are agreed, may be disposed of in the manner described by Rule 9 read with Rule 8.

Rule 10 - Undue Delay in Bringing Petition to Hearing

Registrar calls on petitioner to explain delay. If no explanation is given or Registrar finds it insufficient, Registrar may, after notifying all parties who entered appearance, place the petition before Court for directions.

Rule 11 - Number of Advocates Heard

At hearing, not more than one advocate is heard for petitioner/petitioners and not more than one advocate for each respondent/each set of respondents, unless Court directs otherwise.

Registrar Order / Issue	Time	Next Authority
Order V Rule 3 - appeal against Registrar order under Business in Chambers	15 days	Judge in Chambers
Order VIII Rule 6(5) - document/registration order	15 days	Judge in Chambers
Order XV Rule 5 - refusal to receive petition	15 days	Court by motion

EXAM TRAP: Same number, different destination: 15 days appears in all three, but Order XV goes to the Court, while Orders V and VIII go to Judge in Chambers.

30-Second Revision

- Petition paragraphs/pages are numbered consecutively and Rule 1 contains detailed endorsement requirements.
- Rule text says A4 + quarter margin; 19 August 2014 Circular gives a separate paper-size direction tied to 1966 Rules until further orders.
- Rule 1 does not fix one universal copy number - copies as required by Court.
- Caveat Rule 2 has no numerical validity period stated in SCI Rules.
- Factual allegations not verifiable from Court record -> affidavit required.
- Registrar refusal grounds: no reasonable cause / frivolous / scandalous.
- Registrar refusal appeal -> 15 days -> Court by motion.
- Consent/formal non-contentious petition may be ordered without attendance.
- Withdrawal notice is in writing to Registrar.
- Undue delay may lead Registrar to place petition before Court after notice.
- Normally one advocate for petitioner side and one for each respondent/set unless Court directs otherwise.

MASTER COMPARISON TABLES

1. Next Friend vs Guardian

Point	Next Friend	Guardian
Party position	Minor instituting/continuing proceeding	Minor respondent requiring representation
Retirement	Court leave required	Court leave required
Replacement effect	Proceedings stayed until replacement after retirement/removal/death	Court appoints replacement after retirement/death/removal
Compromise	Court leave expressly recorded	Court leave expressly recorded

2. Party vs Non-Party Copy

Point	Party	Non-Party
Right under Order XIII	Entitled to apply/receive certified copies	No automatic right
Permission	Rule 1 entitlement	Court must allow on good cause
Pending/disposed	Covered	Can apply in pending or disposed matter, subject to Court

3. Registrar Appeal Routes

Provision	Time	Forum
Order V Rule 3	15 days	Judge in Chambers
Order VIII Rule 6(5)	15 days	Judge in Chambers
Order XV Rule 5	15 days	Court by motion

4. Certified Copy vs Unauthenticated Copy

Point	Certified Copy	Other Copy
Official certification	Yes	No
Seal/certification route	Rule 5 of Order XIII	Must state it is not a certified copy
Confidential/sealed documents	Not as of right; special order needed	Same confidentiality restriction applies

5. Court / Registrar / Judge in Chambers - High-Yield Actions

Action	Authority
Minor compromise	Court leave expressly recorded
Order VIII formal defect correction	Registrar may allow in his presence
Order VIII appeal from Registrar	Judge in Chambers
Order XI ex parte interim order for serious hardship	Court
Order XI short notice leave	Registrar ex parte upon affidavit
Order XII transmit order to other appropriate authority for enforcement	Application to Judge in Chambers
Order XV refusal appeal	Court by motion

MASTER NUMBER MAP – ORDERS VII TO XV

These are the numbers most likely to be mixed up in objective questions.

Number / Amount	Provision to Remember
14 days	Order VII Rule 5 - notice before hearing when specified non-natural guardian is proposed.
29.7 cm x 21 cm	Order VIII Rule 1 - paper size expressly mentioned among permitted forms.
28 days	Order VIII Rule 6(3) - maximum aggregate time for specified defect rectification procedure.
15 days	Order VIII Rule 6(5) - appeal to Judge in Chambers; Order XV Rule 5 - appeal to Court by motion.
3 months	Order VIII Court-fee deficiency limits/recovery trigger in specified situations.
24 hours	Order X Rule 2 - written notice for inspection/search during pendency.
7 days	Order XI notice where opposite party entered appearance.
14 days	Order XI notice where opposite party has not entered appearance.
5 days	Order XI affidavit in opposition.
2 days	Order XI affidavit in reply.
5 Judges	Order XI Rule 7 - minimum Bench stated for the covered IA/miscellaneous application.
90 days	Order XII Rule 10 - maximum time allowed to move Court against Registrar settlement.
Form 29	Order XIII Rule 3 - copy application form.
1 day prior	Order XIV Rule 2 proviso for DD/banker's cheque/pay order tender.
10 days	Order XIV Rule 4 - challan last date cannot exceed 10 days from issue.
1% + 2%	Order XIV Rule 9 - commission on principal and interest respectively.
Rs. 15,000	Order XIV Rule 9 - maximum commission.
Rs. 100	Order XIV Rule 12 - clerk registration fee.
Rs. 50	Order XIV Rule 13 - replacement ID fee.

Number / Amount	Provision to Remember
15 days	Order XV Rule 5 - appeal from Registrar refusal to Court by motion.

MEMORY AID: Order XI timeline: 7-14-5-2. Order XIV money chain: 1 day prior -> 10 days -> 1%/2% -> cap 15,000 -> clerk 100 -> card 50.

TOP 50 FACTS - MODULE 2

- 1. A minor proceeding is instituted/continued in the minor's name by next friend.
- 2. Next friend cannot retire without Court leave.
- 3. Retirement/removal/death of next friend stays further proceedings until replacement.
- 4. New next friend application requires affidavit of fitness and absence of adverse interest.
- 5. Rule 5 of Order VII contains a not-less-than-14-days notice requirement in the specified guardian situation.
- 6. Minor compromise requires Court leave expressly recorded.
- 7. Adverse interest alone does not set aside a minor's decree; prejudice must be caused.
- 8. Order VII extends, so far as applicable, to persons of unsound mind/mental infirmity found incapable of protecting interests.
- 9. Order VIII requires documents to meet legibility/form requirements.
- 10. 29.7 cm x 21 cm is a paper size expressly mentioned in Order VIII Rule 1.
- 11. Non-English documents need an acceptable translation under Rules 2-3.
- 12. Translator makes oath/affirmation before acting.
- 13. Filing counter officer endorses receipt date and enters daily filing register.
- 14. Formal defect may be corrected in Registrar's presence.
- 15. Specified defect rectification time under Order VIII Rule 6 can be up to 28 days in aggregate.
- 16. Appeal from Registrar under Order VIII Rule 6 is within 15 days to Judge in Chambers.
- 17. SCLSC-filed matters are exempt from Court fee, process fee and copying fee under Order VIII Rule 8 proviso.
- 18. Court-fee stamp must be cancelled before the chargeable document is acted upon.
- 19. Bona fide Court-fee deficiency time allowed by Registrar cannot exceed 3 months.
- 20. In a disposed matter, deficiency unpaid within 3 months of declaration may be recovered via Central Government as arrear of land revenue.
- 21. Affidavit may be used for proof subject to cross-examination protection in Rule 1.
- 22. Affidavit is in first person and consecutively numbered paragraphs.
- 23. Belief statements are specially allowed on interlocutory applications if grounds are stated.
- 24. Within Delhi, affidavit interpretation is by Court-nominated/approved interpreter.
- 25. Rule 7 of Order IX lists Notary, specified authority, authorised Registrar and authorised Oath Commissioner.
- 26. Pardahnashin lady has special female oath-authority and identification requirements.
- 27. Late affidavit after specially limited time needs leave of Court.
- 28. Verification distinguishes personal knowledge from information/belief and discloses source.
- 29. Order X inspection during pendency requires 24 hours written notice.
- 30. During inspection, notes may be made but copies may not be taken.
- 31. Court record cannot be taken out of custody without Court leave.
- 32. Order XI general rule is motion after notice for applications that cannot be made in Chambers.
- 33. Serious hardship may justify ad-interim ex parte relief.
- 34. Order XI notice chain is 7 days / 14 days; affidavit chain is 5 days / 2 days.
- 35. Short notice leave can be obtained ex parte from Registrar upon affidavit.
- 36. Order XI Rule 7 states not less than 5 Judges.
- 37. Judgment is pronounced in open Court.
- 38. Decree/order under Order XII Rule 5 is signed by Registrar/Additional Registrar/Deputy Registrar.
- 39. Decree/order bears same date as judgment.
- 40. Order XII Rule 10 gives maximum 90 days from Registrar's order to move Court.
- 41. Party is entitled to apply for certified copies under Order XIII Rule 1.
- 42. Non-party needs Court permission on good cause.
- 43. Copy application uses Form No. 29.
- 44. 2019 amendment added advocate who argued / advocate authorised by AOR to Rule 3 presentation route.
- 45. Non-certified copy must say that it is not a certified copy.

- 46. Challan payment date cannot exceed 10 days from issue.
- 47. Order XIV Rule 9 commission is 1% on principal + 2% on interest, max Rs. 15,000.
- 48. Clerk registration fee is Rs. 100; replacement ID is Rs. 50.
- 49. Order XV caveat rule states no numerical validity period.
- 50. Registrar refusal under Order XV Rule 5 -> 15 days -> Court by motion.

PRACTICE MCQs - ORDERS VII TO XV

Attempt these without looking back at the notes. All questions are based on the SCI Rules content covered in this module.

1. A proceeding by a minor shall be instituted or continued in the name of the minor by:

A. Guardian ad litem
B. Next friend
C. Registrar
D. Natural guardian only

2. A next friend may retire:

A. At any time without permission
B. Only with leave of Court
C. With Registrar permission only
D. Only after final judgment

3. On retirement, removal or death of a minor's next friend, further proceedings are:

A. Dismissed
B. Transferred
C. Stayed until new next friend is appointed
D. Automatically continued by AOR

4. The notice period in the specified guardian appointment situation under Order VII Rule 5 is not less than:

A. 7 days
B. 10 days
C. 14 days
D. 21 days

5. A compromise on behalf of a minor requires:

A. Registrar approval only
B. Court leave expressly recorded
C. Consent of AOR only
D. No formal approval

6. A decree against a minor is set aside merely because the guardian had an adverse interest:

A. Always
B. Never under any circumstance
C. Not merely for that reason; prejudice is relevant
D. Only if Registrar agrees

7. Order VIII Rule 1 expressly mentions which paper size?

A. 21 cm x 14.8 cm
B. 29.7 cm x 21 cm
C. 35 cm x 25 cm
D. 42 cm x 29.7 cm

8. A document in a language other than English may be used when accompanied by:

A. Any private translation
B. A translation satisfying Rule 2
C. No translation is needed
D. Only a newspaper translation

9. A formal defect in a document may be allowed to be rectified:

A. Only by a five-Judge Bench
B. In the Registrar's presence
C. Only by Taxing Officer
D. Only by CJI personally

10. Maximum aggregate time under Order VIII Rule 6(3) for the specified defect procedure is:

A. 15 days
B. 21 days
C. 28 days
D. 30 days

11. Appeal against Registrar order under Order VIII Rule 6 lies within 15 days to:

A. Court by motion
B. Judge in Chambers
C. Secretary General
D. Taxing Officer

12. Matters filed through the Supreme Court Legal Services Committee are, under the proviso, exempt from:

A. Only Court fee
B. Court fee, process fee and copying fee
C. Only copying fee
D. No fees at all of every kind

13. Maximum time Registrar may allow to make good bona fide Court-fee deficiency under Order VIII Rule 8(4) is:

A. 1 month
B. 2 months
C. 3 months
D. 6 months

14. An affidavit is normally drawn up in:

A. Third person
B. First person
C. Question-answer form only
D. Tabular form only

15. An affidavit must be divided into paragraphs that are:

A. Unnumbered
B. Numbered consecutively
C. Numbered only by Registrar
D. Numbered alphabetically

16. Statements of belief may be admitted, with grounds stated, especially on:

A. Final decrees
B. Interlocutory applications
C. Criminal sentences only
D. Taxation files only

17. A pardahnashin lady may take oath before, among others:

A. Any male clerk
B. A lady Registrar/Additional Registrar duly authorised by CJI

C. Any advocate
D. Only District Judge

18. An affidavit filed after a specially limited time may be used:

A. Automatically
B. Only with leave of Court
C. With AOR consent alone
D. Never

19. Inspection during pendency requires written notice of:

A. 12 hours
B. 24 hours
C. 48 hours
D. 7 days

20. During inspection under Order X Rule 2:

A. Copies may be freely taken
B. Notes may be made but copies may not be taken
C. Neither notes nor copies are allowed
D. Only photographs are allowed

21. A Court record may be taken out of Court custody:

A. With AOR permission
B. With leave of Court
C. With clerk permission
D. Whenever inspection fee is paid

22. Under Order XI, where opposite party has entered appearance, notice of motion is ordinarily served not less than:

A. 2 days
B. 5 days
C. 7 days
D. 14 days

23. Where opposite party has not entered appearance, the notice period is ordinarily not less than:

A. 5 days
B. 7 days
C. 10 days
D. 14 days

24. Affidavit in opposition under Order XI Rule 5 is filed not later than:

A. 2 days before hearing
B. 5 days before hearing
C. 7 days before hearing
D. 14 days before hearing

25. Affidavit in reply under Order XI Rule 5 is filed not later than:

A. 1 day
B. 2 days
C. 5 days
D. 7 days

26. Leave to serve short notice of motion may be obtained ex parte from:

A. Registrar

B. Taxing Officer
C. Court Master
D. Registered clerk

27. Order XI Rule 7 mentions a Bench of not less than:

A. 2 Judges
B. 3 Judges
C. 5 Judges
D. 7 Judges

28. Judgment after hearing is pronounced:

A. Only in Chambers
B. In open Court
C. Only in Registry
D. By Registrar

29. Under Order XII Rule 5, a decree/order is signed by:

A. Registrar/Additional Registrar/Deputy Registrar
B. Assistant Registrar only
C. Secretary General only
D. AOR

30. A decree/order under Order XII Rule 5 bears:

A. Date of filing
B. Date of registration
C. Same date as judgment
D. Date chosen by Registrar

31. Maximum period mentioned in Order XII Rule 10 for moving the Court after Registrar settlement is:

A. 30 days
B. 60 days
C. 90 days
D. 120 days

32. A non-party seeking copies under Order XIII must show:

A. No cause
B. Good cause and obtain Court permission
C. AOR registration
D. Only payment of fee

33. The prescribed form for copy application is:

A. Form 16
B. Form 22
C. Form 29
D. Form 30

34. A copy other than a certified copy must bear an endorsement that:

A. It is provisional
B. It is not a certified copy
C. It is confidential
D. It is an original

35. The 2019 amendment to Order XIII Rule 3 added, among others:

A. Taxing Officer
B. Advocate who argued the matter
C. Court Master
D. Any clerk

36. A challan under Order XIV Rule 4 can specify a last date not exceeding how many days from issue?

A. 7
B. 10
C. 15
D. 30

37. Maximum commission under Order XIV Rule 9 is:

A. Rs. 5,000
B. Rs. 10,000
C. Rs. 15,000
D. Rs. 25,000

38. Fee for registering a clerk under Order XIV is:

A. Rs. 50
B. Rs. 100
C. Rs. 250
D. Rs. 500

39. Fee for replacement identity card for lost/damaged card is:

A. Rs. 25
B. Rs. 50
C. Rs. 100
D. Rs. 250

40. Under Order XV Rule 5, appeal from Registrar's refusal to receive a petition lies within 15 days to:

A. Judge in Chambers
B. Court by motion
C. Secretary General
D. Bar Council

Answer Key

Range	Answers
Questions 1-10	1-B 2-B 3-C 4-C 5-B 6-C 7-B 8-B 9-B 10-C
Questions 11-20	11-B 12-B 13-C 14-B 15-B 16-B 17-B 18-B 19-B 20-B
Questions 21-30	21-B 22-C 23-D 24-B 25-B 26-A 27-C 28-B 29-A 30-C
Questions 31-40	31-C 32-B 33-C 34-B 35-B 36-B 37-C 38-B 39-B 40-B

EXAM TECHNIQUE: When two options both look familiar, identify the Order first. Example: 14 days can refer to Order VII guardian notice or Order XI notice where appearance has not been entered. The subject of the number is as important as the number itself.

Final 5-Minute Checklist

- Can I distinguish next friend and guardian?
- Can I recall 14 days in Order VII and the 7-14-5-2 sequence in Order XI?
- Can I recall 28 days, 15 days and 3 months in Order VIII?
- Can I explain the form and verification of an affidavit?
- Can I recall 24 hours for inspection during pendency?
- Can I distinguish correction of judgment from review?
- Can I identify the three signatories listed in Order XII Rule 5?
- Can I distinguish party and non-party copy rights?
- Can I recall 10 days, 1%/2%, Rs. 15,000, Rs. 100 and Rs. 50 in Order XIV?
- Can I distinguish the 15-day appeal forum under Orders VIII and XV?
- Can I explain the special 2014 Circular note affecting Order XV paper size?

END OF MODULE 2 - ORDERS VII TO XV

For SCI JCA 2026 objective preparation